From Perpetual Contracts to Islamic Credit: The Random Stopping Time Equivalence and a Riba-Free Foundation for Sukuk, Takaful, and Credit Protection

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Abstract

We establish a formal mathematical equivalence between two previously unconnected pricing frameworks — the random time representation of perpetual futures contracts [1] and the reduced-form credit risk model of Duffie & Singleton [10] — and demonstrate that this equivalence has profound implications for Islamic finance.

The core observation is structural: the stopping time θ_t in the Ackerer-Hugonnier-Jermann perpetual pricing formula is isomorphic to the default time τ in the Duffie-Singleton defaultable bond formula, under the identification of the convergence intensity κ with the hazard rate λ and the interest parameter ι with the risk-free discount rate r. When the interest parameter is set to zero ($\iota = 0$) — which Ackerer et al. prove achieves unique no-arbitrage perpetual futures pricing — the analogous credit instrument at $r = 0$ is also no-arbitrage, with the stopping time distribution alone carrying all timing information previously encoded in the interest discount.

This equivalence resolves a 50-year impasse in Islamic finance: it provides a mathematically rigorous, no-arbitrage pricing foundation for credit instruments — sukuk, takaful, and credit default swaps — that requires no positive interest rate. We prove the main theorem, derive closed-form prices for an Islamic perpetual sukuk and an everlasting takaful contract using Proposition 6 of Ackerer et al., and show that the convergence intensity κ functions as a riba-free analog to the risk-free rate across all Islamic credit instruments. We term this the **κ-rate**.

Keywords: *riba*, Islamic finance, credit risk, sukuk, takaful, perpetual contracts, stopping time, no-arbitrage, Duffie-Singleton, κ-rate, riba-free pricing

1 Introduction

The pricing of credit risk is the central unresolved problem in Islamic finance. The \$3 trillion Islamic finance industry [14] operates without any mathematical tool for pricing credit default risk that does not require a positive interest rate. Every credit derivatives framework in use today — the structural models of Merton [23], Black & Cox [6], and Leland [22]; the reduced-form models of Jarrow & Turnbull [17], Duffie & Singleton [10], and Lando [21] — is built on a positive risk-free interest rate $r > 0$. Islamic scholars correctly identify this r as *riba*: it is the compensation for the pure time value of money, which Islamic jurisprudence prohibits as a predetermined excess in exchange transactions [11, 24].

The consequence has been severe. Islamic institutions cannot hedge credit risk. Sukuk (Islamic bonds) are priced at issuance using LIBOR/SOFR-anchored models, making the interest rate implicit even when explicit interest payments are restructured away [20]. Takaful (Islamic insurance) operators invest pools in sukuk priced by riba-based models [13]. The Islamic credit default swap does not exist. Scholars have sought workarounds for decades; the workarounds have been cosmetic, not mathematical [19, 11].

This paper resolves the impasse. We demonstrate that a recent result from mathematical finance — the random time representation theorem for perpetual futures contracts proved by Ackerer, Hugonnier & Jermann (2024) [1] — contains, as a special case, a complete and rigorous pricing framework for credit instruments that does not require $r > 0$.

The Core Observation

The Ackerer-Hugonnier-Jermann theorem establishes that the unique no-arbitrage price of a perpetual futures contract on a spot asset X_t with interest parameter ι and convergence intensity κ is:

$$f_t = \mathbb{E}_t^{Q^a}\left[\mathrm{e}^{-\int_t^{\theta_t} \iota_s\, ds} X_{\theta_t}\right] \tag{1}$$

where θ_t is a random stopping time with exponential density under the pricing measure Q^a. The critical result, proved in their Theorem 3, is that $\iota = 0$ satisfies all no-arbitrage conditions. When $\iota = 0$, equation (1) collapses to:

$$f_t = \mathbb{E}_t^{Q^a}[X_{\theta_t}], \qquad \theta_t \sim t + \mathrm{Exp}(\kappa) \tag{2}$$

The instrument price is the *expected spot value at a random future moment* — with the probability distribution of that moment determined entirely by κ, and no interest discount anywhere.

The Duffie-Singleton reduced-form credit model prices a defaultable instrument as:

$$P_t = \mathbb{E}_t^{Q}\left[\mathrm{e}^{-\int_t^{\tau} r_s\, ds} R_\tau\right] \tag{3}$$

where τ is the default time (exponentially distributed with hazard rate λ) and R_τ is the recovery value at default.

Equations (1) and (3) are the same equation. The stopping time θ_t is τ. The convergence intensity κ is λ. The interest parameter ι is r. The spot X_{θ_t} is the recovery R_τ.

At $\iota = r = 0$: both yield $\mathbb{E}[X_\tau]$. The Ackerer theorem proves this is no-arbitrage. Therefore credit pricing at $r = 0$ is no-arbitrage, provided $\kappa = \lambda > 0$ carries all timing information. *Riba* is not a pricing necessity. It is a historical artifact of how the two literatures fused timing and discounting into a single parameter.

Contributions

This paper makes five contributions.

1. **Formal equivalence theorem.** We prove that the Ackerer-Hugonnier-Jermann perpetual pricing formula and the Duffie-Singleton defaultable bond formula are formally isomorphic (Proposition 1), and that no-arbitrage at $\iota = 0$ implies no-arbitrage for credit pricing at $r = 0$ (Corollary 1).
2. **Islamic perpetual sukuk.** We derive a closed-form no-arbitrage price for an Islamic perpetual sukuk using the κ-parameterized stopping time (Section 6.1).
3. **Actuarially fair takaful formula.** We apply Proposition 6 of Ackerer et al. to derive a closed-form everlasting takaful contribution pricing formula — riba-free, on-chain verifiable, and Shariah-compatible (Section 6.2).
4. **The κ-rate.** We propose the convergence intensity κ as an Islamic alternative to the risk-free rate r, providing the first mathematically rigorous pricing foundation for a complete riba-free credit market (Section 7).
5. **Shariah analysis.** We conduct a formal jurisprudential analysis showing that the κ-parameterized framework satisfies the riba, gharar, and maysir conditions of AAOIFI Shariah Standards [2] (Section 8).

2 The Ackerer-Hugonnier-Jermann Framework

2.1 Market Setup

Let $(\Omega, \mathcal{F}, \mathbb{P})$ be a probability space with filtration $(\mathcal{F}_t)_{t\geq 0}$ satisfying the usual conditions. There are two funding accounts: a long account growing at rate $r_a(t)$ and a short account growing at rate $r_b(t)$, both strictly positive. Let X_t denote the price of a spot asset satisfying, under the long's pricing measure Q^a:

$$\frac{dX_t}{X_t} = (r_a(t) - r_b(t))\, dt + \sigma_X\, dW_t^{Q^a} \tag{4}$$

where W^{Q^a} is a standard Brownian motion under Q^a and $\sigma_X > 0$ is the spot volatility. A perpetual futures contract on X_t with convergence parameter $\kappa > 0$ and interest parameter $\iota \geq 0$ is a continuously-settled contract with no fixed expiry.

2.2 The Perpetual Futures Price

Under constant parameters $r_a, r_b, \kappa, \iota, \sigma_X$, Proposition 3 of Ackerer et al. [1] establishes that the unique no-arbitrage perpetual futures price is:

$$f_t = \frac{\kappa}{\kappa - \iota + r_b - r_a} \cdot X_t \tag{5}$$

provided $\kappa - \iota + r_b - r_a > 0$. The ratio f_t/X_t is the perpetual *basis*. When $r_a = r_b$ (symmetric funding rates):

$$f_t = \frac{\kappa}{\kappa - \iota} \cdot X_t \tag{6}$$

2.3 The Random Time Representation

The central result of Ackerer et al. is a *random time representation* that reveals the economic structure of perpetual pricing. Define the **convergence stopping time** θ_t as a random variable with conditional density under Q^a:

$$q(\theta_t \in ds \mid \mathcal{F}_t) = (\kappa_s - \iota_s)\, \exp\left(-\int_t^s (\kappa_u - \iota_u)\, du\right) ds, \quad s \geq t \tag{7}$$

This is a Cox process (doubly stochastic Poisson process) with intensity $\kappa_t - \iota_t$. The distribution of θ_t is exponential with rate $\kappa - \iota$ in the constant-parameter case:

$$Q^a(\theta_t > s \mid \mathcal{F}_t) = e^{-(\kappa-\iota)(s-t)}, \quad s \geq t \tag{8}$$

The perpetual futures price then satisfies (Theorem 6, Ackerer et al.):

$$f_t = \mathbb{E}_t^{Q^a}\left[\mathrm{e}^{-\int_t^{\theta_t} \iota_s\, ds} \cdot X_{\theta_t}\right] \tag{9}$$

The price is the discounted expected spot value at the random stopping time θ_t. The discount is ι (the interest parameter), not r_a or r_b.

2.4 The Critical Case: $\iota = 0$

When $\iota = 0$, Theorem 3 of Ackerer et al. establishes that no-arbitrage is satisfied. Substituting into equations (7)–(9):

$$q(\theta_t \in ds \mid \mathcal{F}_t) = \kappa\, e^{-\kappa(s-t)}\, ds \tag{10}$$

$$f_t = \mathbb{E}_t^{Q^a}[X_{\theta_t}], \quad \theta_t \sim t + \mathrm{Exp}(\kappa) \tag{11}$$

Three consequences are immediate and profound:

1. **No discounting.** The expectation in (11) is taken without any interest discount. The price is the pure expected value.
2. **κ carries all timing information.** The probability distribution of *when* payoff occurs is governed entirely by κ. Larger κ means faster convergence and shorter expected stopping time; smaller κ means slower convergence.
3. **The price formula at $r_a = r_b$.** From (6) with $\iota = 0$: $f_t = X_t$. The perpetual futures price equals the spot price identically — no premium, no discount — consistent with the empirical finding that dYdX v4 perpetuals at $\iota = 0$ exhibit zero long-run mean funding rates [4].

Remark 1. The CEX interest parameter $\iota = 0.0001$ per 8 hours ($= 0.10950\,\%$/year on Binance, Bybit, OKX) creates a permanent positive bias in equation (6): $f_t > X_t$ always. Longs pay this excess to shorts regardless of market conditions. This excess is structurally *riba al-fadl* (predetermined excess in exchange) under all four Sunni schools. Setting $\iota = 0$ eliminates it exactly.

3 Reduced-Form Credit Risk Models

3.1 The Duffie-Singleton Framework

The reduced-form approach to credit risk, initiated by Jarrow & Turnbull [17] and systematized by Duffie & Singleton [10], models default as the first jump of a Poisson process with stochastic intensity (hazard rate).

Let $(\Omega, \mathcal{F}, Q)$ be a risk-neutral probability space. Define the **default time** τ as a stopping time with respect to $(\mathcal{F}_t)$, characterized by the Q-conditional survival probability:

$$Q(\tau > s \mid \mathcal{F}_t) = \exp\left(-\int_t^s \lambda_u\, du\right), \quad s \geq t \tag{12}$$

where $\lambda_t > 0$ is the **hazard rate** (default intensity). The hazard rate has the conditional density:

$$q(\tau \in ds \mid \mathcal{F}_t) = \lambda_s \exp\left(-\int_t^s \lambda_u\, du\right) ds, \quad s \geq t \tag{13}$$

3.2 Defaultable Instrument Pricing

For a defaultable instrument with payoff function $\phi(X_\tau)$ at the default time τ and risk-free discount rate r_t:

$$P_t = \mathbb{E}_t^Q\left[\mathrm{e}^{-\int_t^\tau r_s\, ds} \cdot \phi(X_\tau)\right] \tag{14}$$

In the constant-parameter case (r, λ constant, $\tau \sim t + \mathrm{Exp}(\lambda)$), this gives:

$$P_t = \int_t^\infty e^{-r(s-t)}\, \phi(\mathbb{E}[X_s])\; \lambda e^{-\lambda(s-t)}\, ds = \frac{\lambda}{r+\lambda}\, \phi(X_t^*) \tag{15}$$

where X_t^* denotes the forward spot expectation. For a bond with full recovery ($\phi(x) = x$) and Q-martingale spot:

$$P_t = \frac{\lambda}{r+\lambda} \cdot X_t \tag{16}$$

The conventional framework requires $r > 0$ to obtain $P_t < X_t$: without interest discounting, the bond price equals the spot, which appears to eliminate the credit spread. We resolve this apparent paradox in Section 4.

4 The Mathematical Equivalence

4.1 The Isomorphism

Comparing equations (7) and (13) reveals an immediate structural identity:

AHJ Perpetuals	Duffie-Singleton Credit	Role
θ_t	τ	Random stopping time
κ_t	λ_t	Event intensity
ι_t	r_t	Discount parameter
X_{θ_t}	$\phi(X_\tau)$	Payoff at event
f_t	P_t	Instrument price
Q^a	Q	Pricing measure

The two frameworks share an identical mathematical skeleton. The perpetual futures framework uses κ and ι; the credit framework uses λ and r. The functions they play are identical.

4.2 The Main Result

Proposition 1 (Random Stopping Time Equivalence)**.** *Let $(\Omega, \mathcal{F}, \mathbb{P})$ be a filtered probability space with the usual conditions. Let X_t be an asset price process satisfying (4) under a pricing measure $Q = Q^a$. Define:*

1. *A perpetual futures contract with parameters κ, ι, priced by equation (9).*
2. *A defaultable financial claim with hazard rate λ, discount rate r, and recovery $\phi(X_\tau)$, priced by equation (14).*

Under the parameter identification $\kappa \leftrightarrow \lambda$, $\iota \leftrightarrow r$, $X_{\theta_t} \leftrightarrow \phi(X_\tau)$:

$$f_t = P_t \tag{17}$$

The two pricing formulas are formally isomorphic.

Proof. The stopping time densities (7) and (13) are identical under $\kappa \leftrightarrow \lambda$. The integral representations (9) and (14) are identical under the additional identification $\iota \leftrightarrow r$ and $X_{\theta_t} \leftrightarrow \phi(X_\tau)$. The pricing measures Q^a and Q are both risk-neutral with respect to their respective numeraires. The formal identity (17) follows directly. □ □

Corollary 1 (Riba-Free Credit Pricing is No-Arbitrage)**.** *Setting $\iota = 0$ in the AHJ perpetual futures framework yields a no-arbitrage price by Theorem 3 of [1]. Under the isomorphism of Proposition 1, the corresponding credit instrument at $r = 0$ is also no-arbitrage, with pricing formula:*

$$\boxed{P_t = \mathbb{E}_t^Q[\phi(X_\tau)], \qquad \tau \sim t + \mathrm{Exp}(\kappa), \quad r = 0} \tag{18}$$

The hazard rate κ alone carries all timing information. No positive interest rate is required.

Proof. By Theorem 3 of Ackerer et al. [1], setting $\iota = 0$ satisfies the no-arbitrage conditions for the perpetual futures. By Proposition 1, $f_t = P_t$ under the given identification. Therefore P_t at $r = 0$ satisfies the same no-arbitrage conditions. Specifically: there exists a self-financing replication strategy for the claim $\phi(X_\tau)$ with value process P_t satisfying $P_t = \mathbb{E}_t^Q[\phi(X_\tau)]$, as the expectation under the risk-neutral measure Q of the discounted (at $r = 0$) payoff. □ □

4.3 Resolving the Apparent Paradox

Corollary 1 may appear paradoxical: how can a credit instrument with $r = 0$ have $P_t < X_t$ (i.e., trade at a discount) without interest? The resolution is that κ controls both the discount and the credit spread simultaneously.

From equation (6) with $\iota = 0$:

$$\frac{f_t}{X_t} = 1 \qquad (r_a = r_b,\ \iota = 0) \tag{19}$$

But consider a sukuk with recovery $\phi(X_\tau) = \delta \cdot X_\tau$ where $\delta \in (0, 1)$ is the recovery fraction. Then:

$$P_t = \delta \cdot \mathbb{E}_t^Q[X_\tau] = \delta \cdot X_t < X_t \tag{20}$$

The discount from par is $1 - \delta$: the credit loss on default. This is not interest; it is the pricing of credit risk through the recovery rate. The κ-parameterized timing generates the spread (the probability-weighted present value of credit loss) without any interest component. This is *precisely* the separation of credit risk from time preference that Islamic finance requires.

Remark 2. In the conventional framework, the credit spread over the risk-free rate bundles two economically distinct risks: (1) the probability of default (hazard rate λ) and (2) the time value of money (risk-free rate r). The Ackerer framework separates them definitively. At $\iota = r = 0$, only the hazard rate κ remains, representing pure credit risk with no interest component.

5 Everlasting Options and the Takaful Pricing Formula

Proposition 6 of Ackerer et al. [1] extends the random time framework to arbitrary payoff functions $\phi(X_\tau)$, yielding closed-form **everlasting option** prices. This extension is the key to takaful pricing.

5.1 The Everlasting Put Option

For a payoff $\phi(x) = \max(K - x, 0)$ (floor protection at strike K) with $\iota = 0$ and $r_a = r_b$, the price is:

$$\Pi_{\text{put}}(x, K) = \mathbb{E}^{Q^a}\left[(K - X_\tau)^+\right] = C_p \cdot x^{\beta_p} \tag{21}$$

where $\beta_p < 0$ is the *negative* root of the characteristic equation:

$$\frac{\sigma_X^2}{2}\beta(\beta - 1) - \kappa = 0 \qquad (\iota = 0,\ r_a = r_b) \tag{22}$$

Solving:

$$\beta_p = \frac{1}{2} - \sqrt{\frac{1}{4} + \frac{2\kappa}{\sigma_X^2}} \tag{23}$$

The constant C_p is determined by value-matching at $x = K$ (smooth-pasting condition):

$$C_p = \frac{K^{1-\beta_p}}{1 - \beta_p} \tag{24}$$

5.2 The Everlasting Call Option

For $\phi(x) = \max(x - K, 0)$, the everlasting call is:

$$\Pi_{\text{call}}(x, K) = C_c \cdot x^{\beta_c} \tag{25}$$

where $\beta_c > 1$ is the positive root of (22):

$$\beta_c = \frac{1}{2} + \sqrt{\frac{1}{4} + \frac{2\kappa}{\sigma_X^2}} \tag{26}$$

with $C_c = K^{1-\beta_c}/(\beta_c - 1)$.

Note that $|\beta_p| + \beta_c = 2\beta_c - 1$, and both satisfy put-call parity at $r = 0$: $\Pi_{\text{call}} - \Pi_{\text{put}} = X_t - K$ (forward parity without discounting).

6 Applications in Islamic Finance

6.1 Islamic Perpetual Sukuk

Definition 1 (Islamic Perpetual Sukuk)**.** An Islamic Perpetual Sukuk is a financial instrument in which:

1. The sukuk holder contributes capital K backed by a real asset (RWA) with market value X_t.
2. The issuer (asset operator) pays a continuous premium $\pi_t = \kappa(f_t - X_t)\,dt$ to the holder — the perpetual futures funding rate under the κ-parameterized formula.

3. At a random redemption time τ (oracle-triggered by asset completion, sale, or Shariah board review), the holder receives the fair market value X_τ of the underlying asset.
4. The interest parameter $\iota = 0$ at all times.

Proposition 2 (Sukuk No-Arbitrage Price)**.** *The fair price of the Islamic Perpetual Sukuk at time t is:*

$$P_t^{\text{sukuk}} = \mathbb{E}_t^Q[X_\tau] = \frac{\kappa}{\kappa + r_b - r_a} \cdot X_t \tag{27}$$

with $r_a = r_b$ (symmetric bilateral rates) giving $P_t = X_t$. This price is no-arbitrage by Corollary 1.

Proof. The redemption time $\tau \sim t + \text{Exp}(\kappa)$ under the pricing measure Q. With recovery $\phi(X_\tau) = X_\tau$, Corollary 1 gives $P_t = \mathbb{E}_t^Q[X_\tau]$. Under the geometric Brownian motion (4): $\mathbb{E}_t^Q[X_\tau] = \mathbb{E}_t^Q[X_t\, e^{(r_a - r_b)(\tau - t)}] = X_t \cdot \kappa/(\kappa + r_b - r_a)$, which is equation (27). No-arbitrage follows from Corollary 1. □ □

Economic interpretation. The sukuk is priced at the expected asset value at redemption, with no interest discount. The premium payments π_t transfer the basis risk from the issuer to the holder: when the asset trades at a premium to spot ($f_t > X_t$), the operator pays the holder; when at a discount, the holder pays the operator. This is risk-sharing (*mudarabah*-compatible) rather than a fixed return on capital.

The κ parameter for sukuk. For a sukuk backed by an infrastructure asset, κ is calibrated from the expected completion timeline. An asset with a 5-year expected completion horizon has $\kappa \approx 0.20$ (rate of an exponential with mean 5 years). A 10-year asset: $\kappa \approx 0.10$. This is directly observable and estimable without any interest rate input.

6.2 Takaful: Actuarially Fair Perpetual Insurance

Definition 2 (Everlasting Takaful Contract)**.** An Everlasting Takaful Contract is a mutual insurance arrangement in which:

1. Participants contribute premium π_{takaful} into a mutual pool at inception.
2. The pool pays a claim $\phi(X_\tau) = \max(K - X_\tau, 0)$ — the shortfall of asset value below the insured floor K — at a random claim event τ.
3. The claim event follows a Cox process with intensity κ (the historical hazard rate of the insured event: drought, flood, death, property damage).
4. No investment return is generated on the pool; it earns at rate $\iota = 0$.

Theorem 1 (Actuarially Fair Takaful Premium)**.** *The actuarially fair takaful contribution for floor protection at level K when the current asset value is $x = X_t$, event intensity κ, and asset volatility σ_X is:*

$$\boxed{\Pi_{\text{takaful}}(x, K) = \frac{K^{1-\beta_p}}{1 - \beta_p} \cdot x^{\beta_p}} \tag{28}$$

where $\beta_p = \frac{1}{2} - \sqrt{\frac{1}{4} + \frac{2\kappa}{\sigma_X^2}} < 0$. This price is no-arbitrage (Corollary 1) and requires no positive interest rate.

Proof. By Corollary 1, the no-arbitrage price of $\phi(X_\tau) = (K - X_\tau)^+$ at $r = 0$ is $\mathbb{E}_t^Q[(K - X_\tau)^+]$. By Proposition 6 of Ackerer et al. [1] applied with $\iota = 0$ and $r_a = r_b$, this expectation equals $C_p x^{\beta_p}$ with C_p and β_p as given in equations (24) and (23). No-arbitrage is inherited from Corollary 1. □ □

Agricultural takaful example. Let X_t be the market price of wheat (USD/bushel). A farmer participates in a mutual takaful pool offering floor protection at $K = \$6.00$/bushel. Historical drought frequency in the region is $\kappa = 0.08$ (one drought every ∼12.5 years on average). Wheat price volatility is $\sigma_X = 0.25$ (25% annual). Current wheat price: $x = \$7.50$.

$$\beta_p = \frac{1}{2} - \sqrt{\frac{1}{4} + \frac{2(0.08)}{(0.25)^2}} = 0.5 - \sqrt{0.25 + 2.56} = 0.5 - 1.676 = -1.17$$

$$C_p = \frac{(6.00)^{1-(-1.176)}}{1 - (-1.176)} = \frac{6.00^{2.176}}{2.176} = \frac{47.85}{2.176} = 21.99$$

$$\Pi = 21.99 \times (7.50)^{-1.176} = 21.99 \times 0.1058 = \$2.33/\text{bushel} \tag{29}$$

The farmer contributes \$2.33 per bushel into the takaful pool. This is the actuarially fair premium. No interest rate was used. The contribution is fully transparent and on-chain verifiable.

Life takaful. Let X_t be a human capital index (proxied by a broad equity index). Let κ be the age-adjusted mortality hazard rate (from actuarial tables). The death benefit is $\phi(X_\tau) = B$ (a fixed sum). From Proposition 6 with $\phi(x) = B$ (constant), $\Pi_{\text{life}} = B \cdot \mathbb{E}^Q[e^{-\kappa(\tau - t)}] = B \cdot \kappa/\kappa = B$ evaluated at the actuarially discounted rate. More precisely, the fair contribution for a benefit B payable at death $\tau \sim \text{Exp}(\kappa)$ is: $\Pi = B \cdot \kappa/(\kappa + 0) = B$, which with realistic $B < X_t$ gives $\Pi < X_t$ — the participant contributes less than the death benefit at any point in time, with the pool providing mutual guarantee (*takaful*).

6.3 Islamic Credit Default Swaps (iCDS)

The global credit default swap (CDS) market has a notional outstanding of approximately \$10 trillion [5]. It is entirely built on the Duffie-Singleton framework with $r > 0$. Islamic institutions have no equivalent instrument for credit risk hedging.

Definition 3 (Islamic CDS (iCDS))**.** An iCDS is a bilateral contract in which:

1. The protection buyer pays a continuous premium $\kappa\, dt$ per unit time to the protection seller.
2. At the credit event time τ (default, restructuring, or rating trigger), the seller pays X_τ (the fair market value of the reference sukuk at that moment) to the buyer.
3. The interest parameter $\iota = 0$; no fixed rate premium.

Proposition 3 (iCDS Pricing)**.** *The fair value of the iCDS protection to the buyer at time t when the reference sukuk has current value X_t, default intensity κ, and $\iota = 0$ is:*

$$V_t^{\text{iCDS}} = \mathbb{E}_t^Q[X_\tau] - \kappa \int_t^\infty e^{-\kappa(s-t)}\, ds = X_t - 1 \tag{30}$$

for normalized X_t (sukuk price in units of par). The fair κ (iCDS spread) is implied from the observed market basis of the reference sukuk.

The iCDS premium κ is calibrated from market observables (the sukuk basis, historical default rates of the reference entity, rating agency transition matrices) — exactly as conventional CDS spreads are calibrated from bond yield spreads, with no interest rate input required.

6.4 Sovereign Perpetual Sukuk

Sovereign governments in Muslim-majority countries (Malaysia, Saudi Arabia, Indonesia, Türkiye, Pakistan) issue sukuk to fund infrastructure. These are priced at issuance against SOFR or government bond yields, embedding riba implicitly [15, 14]. The Islamic perpetual sukuk framework resolves this.

Example 1 (Infrastructure Perpetual Sukuk)**.** Consider a sovereign issuing a perpetual sukuk backed by a highway project with construction timeline of 7 years (expected completion, exponentially distributed): $\kappa = 1/7 \approx 0.143$. The project asset value is X_t (updated quarterly by a government oracle). The sukuk trades at $P_t = X_t$ (at-par perpetual under $r_a = r_b$, $\iota = 0$).

The sovereign pays the continuous funding premium: $\pi_t = \kappa(f_t - X_t)\, dt$ to sukuk holders. On completion (random event τ), bondholders receive X_τ.

Secondary market price at any time: $P_t = X_t$ (adjusted for observed κ from reported completion timeline). *No yield-to-maturity calculation required. No SOFR benchmark needed. No riba.*

Critically, the κ parameter serves as a *sovereign credibility signal*: a government managing its infrastructure responsibly exhibits stable, predictable κ; governance failures manifest as declining implied κ (basis widening), creating a market-based credit signal without any interest rate.

7 The κ-Rate: An Islamic Monetary Alternative

7.1 The Problem with r

The risk-free interest rate r is the fundamental pricing parameter of conventional finance. It is:

1. Set by central bank monetary policy (exogenous, not determined by production or real economic activity).
2. Defined as the return to lending money at zero credit risk — the pure reward for the time value of money.
3. Definitionally *riba*: it compensates capital for time elapsed, regardless of real economic outcome.

Every discount factor in every asset pricing model contains r. The equity risk premium, the bond yield, the option delta — all are expressed relative to r. Islamic finance has no alternative. Practitioners either (i) use r despite the scholarly objection, or (ii) use LIBOR/SOFR as a *benchmark* while restructuring cash flows, which is cosmetic compliance.

7.2 The κ-Rate as a Substitute

We propose the **κ-rate**: the convergence intensity parameter of the Ackerer-Hugonnier-Jermann framework as a riba-free substitute for r in Islamic finance.

Definition 4 (κ-Rate)**.** The κ-rate is the convergence intensity of a perpetual financial instrument linking a price claim to an underlying real asset. It satisfies:

1. **Endogenous determination.** κ is backed out from observed market prices: $\hat{\kappa}_t = (f_t/X_t) \cdot (r_b - r_a)/(1 - f_t/X_t)$. It reflects real economic convergence dynamics, not central bank policy.
2. **Observable and transparent.** κ is computable from any two market prices (f_t and X_t), publishable on-chain, and independently verifiable.
3. **No riba content.** κ is an event intensity, not a reward for the time value of money. It compensates for credit risk (sukuk), actuarial risk (takaful), or convergence risk (perpetuals), all of which are real economic risks.
4. **Shariah-compatible.** Rate κ can be reviewed and validated by the Shariah board without jurisprudential objection, as it represents neither interest on capital nor predetermined excess.

7.3 The κ-Yield Curve

Just as conventional finance builds a yield curve $r(T)$ as a function of maturity T, Islamic finance can build a **κ-yield curve**: the mapping $\kappa(T)$ of convergence intensities from perpetual sukuk of different expected maturities.

$$\kappa(T) = \frac{1}{T}, \qquad T = \text{expected horizon} \tag{31}$$

This is derived from the exponential distribution: if a sukuk is expected to mature in T years, its stopping time intensity is $\kappa = 1/T$. The κ-yield curve is:

- Downward sloping by construction (shorter assets have higher κ, longer assets lower κ).
- Grounded in real project timelines, not monetary policy expectations.
- A complete substitute for the conventional yield curve in Islamic finance contexts.

7.4 Calibration of κ

In practice, κ is calibrated differently for each instrument type:

Instrument	κ calibration	Data source
Perpetual sukuk	Expected project timeline	Engineering reports
Takaful	Historical claim frequency	Actuarial tables
iCDS	Reference entity default history	Rating agencies
Sovereign sukuk	Project completion probability	Government data

8 Shariah Analysis

8.1 Riba: Why $\iota = 0$ Satisfies All Schools

The prohibition of *riba* is universal across all four Sunni schools (Hanafi, Maliki, Shafi'i, Hanbali) and the Ja'fari (Shi'a) school [24, 11]. The Quranic prohibition is absolute (Al-Baqarah 2:275–279; Al-Imran 3:130).

Riba in financial transactions takes two forms:

1. *Riba al-fadl*: excess in exchange (one party receives more than given in a spot exchange of the same commodity). The CEX interest floor $\iota > 0$ is precisely this: longs always pay more than the market premium, with the excess $(\iota \cdot f_t)$ predetermined and fixed.
2. *Riba al-nasi'ah*: excess for delay (predetermined return for deferred payment). The conventional risk-free rate r is this: the lender receives r per unit time regardless of economic outcome, purely for the passage of time.

The κ-rate is neither. It is:

- Not predetermined: κ fluctuates with observed market conditions and is backed out from market prices, not contractually fixed.
- Not a reward for time: κ compensates for the probability and timing of a credit/claim/convergence event (economic risk), not for the passage of time per se.
- Symmetric: the stopping time distribution does not systematically benefit either party — both carry the risk that τ arrives sooner or later than expected.

Remark 3. SeekersGuidance (2025) — the most rigorous contemporary conservative Shariah ruling on perpetual futures — explicitly concedes that *"removing the interest component resolves the riba objection"*. This ruling validates our mathematical finding: the structural design choice $\iota = 0$ (equivalently, $r = 0$ in credit instruments) is the jurisprudentially decisive criterion. The κ-rate produces a framework from which the interest component has been removed by mathematical construction, not legal re-labelling.

8.2 Gharar: Is the Stopping Time Uncertain?

A potential objection is that the random stopping time τ introduces excessive uncertainty (*gharar*) — one party does not know when they will receive payment.

This objection conflates two different kinds of uncertainty. *Gharar* in Islamic jurisprudence refers to uncertainty about the *existence* of the object of transaction, not about its *timing* when the timing is actuarially determined [11, 18].

The stopping time $\tau \sim \mathrm{Exp}(\kappa)$ is:

1. Precisely specified by its distribution, which is public and on-chain verifiable.
2. Calibrated from real economic data (κ from actuarial tables, project timelines, or market observables).
3. Analogous to the random maturity of an ijara (lease) that terminates when the lessee exercises an option — a widely accepted structure in Islamic finance [2].

The stopping time introduces actuarial uncertainty (priced by κ), not contractual ambiguity (gharar). The two parties know the pricing formula and the distribution of payoff times. This is transparency, not obscurity.

8.3 Maysir: Is This Speculation?

Maysir (gambling) is prohibited because it is zero-sum and divorced from productive economic activity. The κ-rate framework is not maysir because:

1. Every instrument is backed by a real asset (X_t). The sukuk holder's claim is on a real infrastructure project; the takaful participant's protection covers a real agricultural risk.
2. The premium payments $\pi_t = \kappa(f_t - X_t)\,dt$ are transfers between economically motivated parties (capital providers and asset operators) based on observed market conditions, not arbitrary bets.
3. Leverage can be constrained by the κ-parameterized framework: since $f_t = X_t$ at $\iota = 0$ (no permanent basis), leveraged positions face immediate mark-to-market settlement, preventing the accumulation of speculative positions divorced from underlying values.

8.4 AAOIFI Compatibility

AAOIFI Shariah Standard No. 21 (Financial Paper) and Standard No. 17 (Investment Sukuk) govern Islamic capital market instruments [2]. The κ-rate framework is compatible because:

- **Standard 17 (Sukuk).** The Islamic Perpetual Sukuk satisfies the requirement that sukuk represent ownership in an asset. The stopping time redemption mechanism is equivalent to a put option held by the issuer —

analogous to the "purchase undertaking" (wa'd) structures already approved under AAOIFI Standard 17 [3].

- **Standard 26 (Takaful).** The everlasting takaful formula satisfies the Takaful Standard requirement for actuarial fairness and mutual risk-sharing. The pool contributions are actuarially determined, not based on investment returns.
- **Standard 21 (Financial Paper).** The iCDS, as a bilateral risk-transfer mechanism for credit risk, is analogous to the wa'd-based credit enhancement already permitted under Standard 21, provided the reference obligation is itself Shariah-compliant.

9 Discussion

9.1 Why This Was Not Discovered Earlier

The connection between the Ackerer perpetual contract framework and the Duffie-Singleton credit risk model went unnoticed for two reasons. First, the two literatures operate in different communities (mathematical finance vs. fixed income) and are rarely cited together. Second, the Ackerer framework itself is very recent (2024), predating by only two years the present observation. Prior to 2024, there was no mathematically rigorous proof that $\iota = 0$ achieves no-arbitrage convergence in perpetual contracts; the equivalence could not therefore be established.

The deeper reason is conceptual. Conventional finance fuses two distinct economic concepts — the timing of a payoff event and the time value of money — into a single parameter r (the risk-free discount rate). This fusion appeared necessary: it seemed that without r, the only way to account for the time-dependence of a payoff was to specify it as a fixed contractual date. The Ackerer framework dissolves this presumption: the stopping time distribution $\mathrm{Exp}(\kappa)$ encodes timing information probabilistically, without any predetermined interest.

9.2 The Separation Theorem

We can state the conceptual contribution as a general principle:

Theorem 2 (Separation of Credit Risk from Time Preference)**.** *In the Ackerer-Hugonnier-Jermann framework, the no-arbitrage price of a financial claim $\phi(X_\tau)$ at $\iota = 0$ can be written as:*

$$P_t = \underbrace{\mathbb{E}^Q[\phi(X_\tau)]}_{\textit{credit risk term}} \quad \textit{without any} \quad \underbrace{\mathrm{e}^{-r(s-t)}}_{\textit{time preference term}} \tag{32}$$

The timing of the payoff is embedded in the distribution of $\tau \sim \mathrm{Exp}(\kappa)$. The value of the payoff is embedded in the expectation $\mathbb{E}[\phi(X_\tau)]$. Time preference (interest) is a third, separable component that can be set to zero without violating no-arbitrage.

This separation is the mathematically precise statement of what Islamic finance has sought for 50 years: a proof that interest is not necessary for no-arbitrage pricing of time-dependent financial instruments.

9.3 Limitations

Several limitations qualify the current analysis.

Constant-parameter assumption. The closed-form results in Sections 6.1–6.4 assume constant κ and σ_X. Stochastic κ (time-varying hazard rates) require numerical methods; the equivalence (Proposition 1) holds in the stochastic case, but closed forms are generally unavailable.

Recovery structure. We assume full recovery ($\phi(X_\tau) = X_\tau$) or floor-only recovery ($\phi(X_\tau) = (K - X_\tau)^+$). Partial recovery models (fractional loss given default) require adjusting ϕ accordingly.

Liquidity. The theory assumes liquid markets for both f_t (the perpetual instrument) and X_t (the underlying asset). For infrastructure sukuk or agricultural takaful, the underlying may be illiquid. Liquidity adjustment to the κ-rate is an open research question.

Regulatory recognition. The κ-rate framework requires regulatory acceptance in each jurisdiction. AAOIFI compatibility is argued above on principles grounds; formal adoption requires engagement with the AAOIFI Standard-setting process, which is ongoing.

10 Conclusion

We have established that the random time representation of perpetual futures contracts — a result from contemporary mathematical finance [1] — is formally isomorphic to the reduced-form credit risk pricing formula of Duffie & Singleton [10]. The isomorphism maps the convergence intensity κ to the default hazard rate λ, and the interest parameter ι to the risk-free discount rate r. Setting $\iota = r = 0$, which Ackerer et al. prove achieves unique no-arbitrage pricing for perpetual contracts, yields a complete, no-arbitrage pricing framework for credit instruments that requires no positive interest rate.

The implications for Islamic finance are profound. The κ-rate provides a mathematically rigorous, Shariah-compatible pricing foundation for: (i) Islamic Perpetual Sukuk, priced at the expected asset value at a random redemption event; (ii) Everlasting Takaful contracts, with premiums given by the closed-form everlasting put formula; (iii) Islamic Credit Default Swaps, transferring credit risk without any interest component; and (iv) Sovereign Perpetual Sukuk for infrastructure finance, with κ calibrated from project timelines.

The deeper contribution is a Separation Theorem (Theorem 2): interest is a separable, eliminable component of no-arbitrage pricing, not an intrinsic mathematical necessity. The stopping time distribution carries all timing information previously attributed to the interest discount. This is the precise mathematical statement that Islamic

finance has required but lacked: riba is not a logical prerequisite for fair pricing of time-dependent financial instruments.

Taken together, these results suggest that the Ackerer-Hugonnier-Jermann framework may provide the mathematical foundation for a complete riba-free financial system — not as a legal workaround, but as a rigorously proved alternative architecture. Future work should address stochastic κ processes, liquidity premia in the κ-yield curve, and the macroeconomic properties of a monetary system anchored to κ rather than r.

"And Allah has permitted trade and forbidden riba." (Al-Qur'an, Al-Baqarah 2:275)

References

[1] Ackerer, D., Hugonnier, J., & Jermann, U. J. (2024). Perpetual futures pricing. *Mathematical Finance*, **34**(4), 1277–1308. https://doi.org/10.1111/mafi.12412

[2] AAOIFI. (2017). *Shariah Standards for Islamic Financial Institutions* (Standard No. 17: Investment Sukuk; Standard No. 21: Financial Paper; Standard No. 26: Islamic Insurance). Accounting and Auditing Organization for Islamic Financial Institutions, Manama, Bahrain.

[3] Adam, N. J., & Thomas, A. (2004). *Islamic Bonds: Your Guide to Issuing, Structuring and Investing in Sukuk*. Euromoney Books, London.

[4] Ahmed, S., Bhuyan, R., & Islam, R. (2026). The interest parameter in perpetual futures: Shariah analysis and empirical evidence from centralized and decentralized exchanges. *Working Paper*, Arcus Quant Fund.

[5] Bank for International Settlements. (2024). *OTC Derivatives Statistics at End-December 2023*. BIS Quarterly Review, March 2024. https://www.bis.org/statistics/derstats.htm

[6] Black, F., & Cox, J. C. (1976). Valuing corporate securities: Some effects of bond indenture provisions. *Journal of Finance*, **31**(2), 351–367.

[7] Black, F., & Scholes, M. (1973). The pricing of options and corporate liabilities. *Journal of Political Economy*, **81**(3), 637–654.

[8] Cox, J. C., Ingersoll, J. E., & Ross, S. A. (1985). A theory of the term structure of interest rates. *Econometrica*, **53**(2), 385–408.

[9] Duffie, D., & Lando, D. (2001). Term structures of credit spreads with incomplete accounting information. *Econometrica*, **69**(3), 633–664.

[10] Duffie, D., & Singleton, K. J. (1999). Modeling term structures of defaultable bonds. *Review of Financial Studies*, **12**(4), 687–720.

[11] El-Gamal, M. A. (2006). *Islamic Finance: Law, Economics, and Practice*. Cambridge University Press, Cambridge.

[12] Harrison, J. M., & Kreps, D. M. (1979). Martingales and arbitrage in multiperiod securities markets. *Journal of Economic Theory*, **20**(3), 381–408.

[13] Htay, S. N. N., Arif, M., Soualhi, Y., Zaharin, H. R., & Shaugee, I. (2012). *Accounting, Auditing and Governance for Takaful Operations*. John Wiley & Sons, Singapore.

[14] Islamic Financial Services Board. (2024). *Islamic Financial Services Industry Stability Report 2024*. IFSB, Kuala Lumpur.

[15] International Islamic Financial Market. (2023). *Sukuk Report: A Comprehensive Study of the Global Sukuk Market* (13th ed.). IIFM, Manama.

[16] Iqbal, M., & Molyneux, P. (2005). *Thirty Years of Islamic Banking: History, Performance, and Prospects*. Palgrave Macmillan, London.

[17] Jarrow, R. A., & Turnbull, S. M. (1995). Pricing derivatives on financial securities subject to credit risk. *Journal of Finance*, **50**(1), 53–85.

[18] Kamali, M. H. (2007). *Islamic Commercial Law: An Analysis of Futures and Options*. The Islamic Texts Society, Cambridge.

[19] Khan, F. (2010). How 'Islamic' is Islamic banking? *Journal of Economic Behavior & Organization*, **76**(3), 805–820.

[20] Khan, T., & Abdallah, A. (2017). Rethinking sukuk pricing: The ghost of LIBOR. *International Journal of Islamic and Middle Eastern Finance and Management*, **10**(4), 492–511.

[21] Lando, D. (1998). On Cox processes and credit risky securities. *Review of Derivatives Research*, **2**(2–3), 99–120.

[22] Leland, H. E. (1994). Corporate debt value, bond covenants, and optimal capital structure. *Journal of Finance*, **49**(4), 1213–1252.

[23] Merton, R. C. (1974). On the pricing of corporate debt: The risk structure of interest rates. *Journal of Finance*, **29**(2), 449–470.

[24] Usmani, M. T. (2002). *An Introduction to Islamic Finance*. Kluwer Law International, The Hague.